

		jury required by the Constitution or a statute of this state or of the United States." (<i>Code Civ. Proc.</i>, § 1048(b).) The Court has considered the arguments and evidence submitted by both parties and determines, at this time, bifurcation as requested by Defendant is not warranted. Accordingly, the motion is DENIED. <i>Counsel for Plaintiffs shall give notice of this ruling.</i>
6.	Auto Finance Solutions, LLC v. Prestige Kia Riverside 25-1500766	(Off calendar)
7.	Raygoza v. Kia America, Inc. 25-1466366	Before the Court is a motion to strike filed by defendant Kia America, Inc. (Defendant) directed to the First Amended Complaint (FAC) filed by plaintiff Esperanza L. Batres Raygoza (Plaintiff). For the reasons set forth below, the motion to strike is DENIED. Defendant moves to strike the prayer for punitive damages in the Complaint. A motion to strike is the proper vehicle to attack a claim for punitive damages. (<i>Code of Civ. Proc.</i> §§ 435-436; <i>Truman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63.) A plaintiff may recover exemplary or punitive damages where it is proven that "the defendant has been guilty of oppression, fraud or malice." (<i>Civ. Code</i> § 3294(a).) A properly pleaded fraud claim will itself support recovery of punitive damages. (<i>Stevens v. Sup. Ct. (St. Francis Med. Ctr.)</i>(1986) 180 Cal.App.3d 605, 610.) An employer is not liable for punitive damages "based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." (<i>Civ. Code</i> § 3294, <i>subd. (b)</i>.) With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (<i>Civ. Code</i>, § 3294, <i>subd. (b)</i>; see <i>Weeks v. Baker McKenzie</i> (1998) 63 Cal.App.4th 1128, 1150-1151; <i>College Hospital, Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 712- 713.) Here, Plaintiff cured the defect in the prior pleading and now alleges sufficient facts to support corporate liability for punitive damages, at least at the pleading stage. (FAC ¶ 46.) While Defendant argues the new allegations are conclusory, the FAC as a whole (including a viable claim for fraud) contains sufficient facts to apprise Defendant of the basis upon which Plaintiff is seeking relief. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) Furthermore, specific facts regarding corporate authorization and ratification lies within the knowledge of Defendant. The motion is therefore DENIED.